



U.S. Department
of Transportation

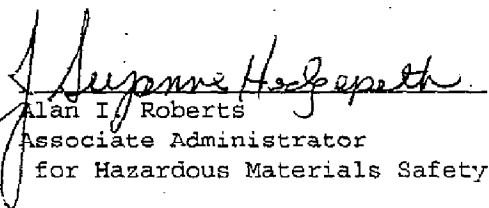
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8084 (EXTENSION)
THIRD REVISION January 6, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8084 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.305. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Austin Powder Company
Cleveland, OH

May 27, 1994

Explosive Technologies International, Inc. (ETI)
Wilmington, DE

June 22, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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**Research and
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DOT-E 8084
(THIRD REVISION)

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 6 1989

1. Ireco Chemicals, Salt Lake City, Utah, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain Class A explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transport of Class A explosives containing more than 5% of moisture in packages not authorized in 49 CFR 173.65(a)(5), and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

ETI Explosives Technologies International, Inc., Wilmington,
DE - PTE-1.
Austin Powder Company, Beachwood, Ohio - PTE-2.

2. BASIS. This exemption is based on Ireco Chemicals' application dated March 23, 1988 and September 13, 1988, submitted in accordance with 49 CFR 107.105 and 107.103 the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111, 107.105 and 107.103 and the public proceeding thereon:

ETI Explosives Technologies International, Inc.'s application dated
September 19, 1988.
Austin Powder Company's application dated May 4, 1988 and
September 21, 1988.

3. HAZARDOUS MATERIALS (Descriptor and class). Water-gel, high explosives containing more than 5% moisture; Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). High explosive.

5. REGULATION AFFECTED. 49 CFR 173.65(a)(5).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Inside packagings prescribed are:

a. Tubes constructed of a polyethylene - polyester - polyethylene laminate or valeron film at least 2.5 mils thick, closed at each end with a metal clip. Each tube, filled as for transport, must be capable of withstanding two drops from a height of 4 feet onto solid concrete without leakage. One drop must be on an end of the package and one on a side of the package.

b. Tubes constructed of a laminate 13 mils thick. The inner and outer layers of the laminate must be composed of 30 pound natural Kraft paper

- 20 pound low density polyethylene - 30 pound natural Kraft paper. The middle layer must be 42 pound liner board. The ends of the tubes must be closed with crimped paper caps made of 26 point liner board.

c. "Tovex T-1 Coils" described as fifty (50) foot long, 7/8 inch diameter polyethylene (du Pont "Alathon" 2020) tubes. Each tube must be closed by folding and then applying a 1 1/2 inch diameter by 2 inch long polyethylene sleeve.

The packages described in the above paragraphs a., b. and c. must be overpacked in any of the outside packagings prescribed in 49 CFR 173.65(a) (1) and (a) (2). Maximum gross weight authorized is 50 pounds in a. and b. packagings and 65 pounds in c. packaging.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle and vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. December 15, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

JAN 6 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG